**IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI**
**COURT-V**

**Item No.-107**
CP(CAA) No26/230/232/ND/2022
New CA/151/2022

**IN THE MATTER OF:**
APIS Natural Products Ltd &Anr.And APIS India Ltd. **....Applicant**

**SECTION**
U/s 230-232

**Order delivered on 04.05.2022**

**CORAM:**
**SHRI ABNI RANJAN KUMAR SINHA**
**HON'BLE MEMBER (JUDICIAL)**

**SHRI HEMANT KUMAR SARANGI,**
**HON'BLE MEMBER (TECHNICAL)**

**PRESENT:**
For the Applicant : Mr. AbhishekNahta
For the Respondent : Kunal Sharma and Zehra Khan, Standing Counsels for Income Tax Department, Advocate HemlataRawat for OL

**ORDER**

**New CA/151/2022:-**

By filing this application, the Applicant has prayed to modify the order dated 23.03.2022 passed by this Bench.

Heard the Ld. Counsel appears for the Applicant and perused the averments made in the application.

Ld. Counsel for the Applicant submits that directions were given to publish notice in 'Business standards' in Hindi or vernacular language in the state of Punjab but the said Newspaper is not circulated within that area and so in place of Business standards, the Transferor Company No. 1 may be permitted to publish the notice in the "Rozana Spokesman" vernacular newspaper. He further submits that in place of not less than 40 days, the Applicant's Company may be given time to publish the notice not less than 10 days before the next date of hearing.

Considering the submissions, we hereby modify the order dated 23.03.2022 and direct the Transferor Company No. 1 to publish the notice of

hearing in "Rozana Spokesman" vernacular newspaper instead of 'Business standards' in Hindi and in place of not less than 40 days, the Applicant is directed to publish the notice less than 10 days before the next date of hearing.

With this order, the present CA **stands disposed of.**

-Sd/-

**(HEMANT KUMAR SARANGI)**
**MEMBER (T)**

-Sd/-

**(ABNI RANJAN KUMAR SINHA)**
**MEMBER (J)**

Khushboo